

The Trustee's First 7 Days Checklist

A day-by-day guide for new trustees — from appointment to action.

You've been named trustee. The trust document is in your hands. Beneficiaries may already be waiting. This checklist walks you through the first seven days — one day at a time, one task at a time. Complete each day's items before moving to the next.

Day 1: Read the Trust Document

Open the document and read it cover to cover. You're looking for five things:

- Trust type — is it revocable or irrevocable? This changes almost everything about your obligations.
- Distribution standard — look for HEMS (Health, Education, Maintenance, Support) or other language. This governs every dollar you distribute.
- Your powers — what can you do? Sell real estate? Borrow? Hire professionals? If it's not listed, you probably don't have that power.
- Removal provisions — can you be removed? By whom? Under what conditions?
- Termination rules — when does the trust end? What happens to the assets?

Tip: Use a highlighter. Mark distribution standards in one color, your powers in another, beneficiary names in a third.

Day 2: Get an EIN (or Confirm You Don't Need One)

- If the trust is irrevocable, or if the grantor has died → Get an EIN from the IRS website (irs.gov/ein). Takes about 10 minutes.
- If it's a revocable living trust and the grantor is still alive → Use the grantor's SSN. No EIN needed yet.
- Save the EIN confirmation letter. You'll need it for tax filings and bank accounts.

Note: You'll need a separate EIN when the trust becomes irrevocable (usually when the grantor dies).

Day 3: Open Dedicated Trust Accounts

- Open a dedicated trust checking account (not your personal account).
- If the trust holds significant assets, open a trust savings or investment account.
- Use the trust's EIN (or grantor's SSN) for the account.
- Get debit cards and checks in the trust's name, not yours.
- Never mix trust funds with personal funds — not for convenience, not for a day.

This is the single most important separation rule. Commingling is the #1 way trustees create personal liability.

Day 4: Inventory the Assets

- List every asset the trust owns: real estate, bank accounts, investment accounts, personal property.
- Note the current value and valuation date for each asset.
- Take photos of physical assets (real estate, vehicles, valuables).
- Get appraisals if needed (real estate, business interests, collectibles).
- Note any debts or liabilities attached to trust assets.
- Create a master asset list and store it with the trust document.

You need to know what's in the safe before you can guard it.

Day 5: Notify the Beneficiaries

- Identify all beneficiaries named in the trust document.
- Send a written notice to each beneficiary (email or certified mail).
- Include: your name and contact information, the trust's name and date, what beneficiaries can expect (annual reports, distribution process).
- Keep proof of delivery for every notice sent.
- Note: UTC §813 requires keeping beneficiaries informed. This isn't optional in most states.

Transparency is your best defense. A beneficiary who knows what's happening is far less likely to sue.

Day 6: Set Your Calendar

- Mark tax filing deadlines (Form 1041 due April 15 for calendar-year trusts).
- Set annual report dates (if required by your state or the trust document).
- Schedule required investment reviews (at minimum: annual).
- Note any upcoming deadlines from the trust document (distributions, reviews, reports).
- Set a recurring monthly reminder: 30 minutes to review trust activity.

Put these on your calendar now, before life gets busy. Missed deadlines are the most common — and most preventable — trustee mistake.

Day 7: Document Everything

- Write a trustee log entry for each of the first six days.
- For each entry: date, what you did, why you did it, what you decided.
- Save copies of: trust document, EIN confirmation, bank account opening docs, beneficiary notices, asset inventory.
- Store everything in one place (physical binder or digital vault).
- Create a system for ongoing documentation (minutes, memos, dated notes).

The court doesn't care what you intended. It cares what you can prove. Every decision, every communication, every action — write it down, date it, save it.

After the First Week

The first seven days are the hardest. Once the system is in place, maintenance drops to about one hour per month. Here's what to do next:

- First 30 days: Complete asset valuations, set up recordkeeping system, confirm EIN and accounts.
- First 60 days: Send initial beneficiary report, schedule first annual review, establish documentation routine.
- First 90 days: Review tax strategy with a CPA, set up investment framework if applicable, confirm all formalities are in place.

Want the full system?

TrustOffice automates everything this checklist covers — minutes, accounting, distributions, and beneficiary communication. Subscribe at trustoffice.app and get the full 27-lesson Trustee 101 course included.

Trustee 101 · Module 1 · Lesson 3 · trustoffice.app

This checklist is educational, not legal advice. Consult your attorney for your specific situation.